

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANNE LESLEY SALCER,

Petitioner

VS.

FRANCOIS LUONG,

Respondent

) Case Number: FDV-10-807626

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER CHANGE OF CHILD SUPPORT, PERCENTAGE EXPENSE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anne Lesley Selcer (Mother) and Respondent Francois Luong (Father). They share one minor child: Sitka, age 17 (DOB: 7/2/09).
- 2) On 6/15/26, Mother filed a Request for Order seeking modification of the child support order filed 11/13/20 (\$1,052 monthly child support with a two-way bonus table retroactive to 8/1/20), reallocation of child support add-on expenses, and Father ordered to maintain the minor child's current health insurance.
- 3) On 6/15/26, Mother filed an Income and Expense Declaration.
- 4) On 7/14/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order. Father asserts that an increase in child support "would have catastrophic consequences on [his] ability to provide care for Sitka." Father states that he was laid off in 2022 and didn't secure new employment until February 2024 and incurred a significant amount of debt.
- 5) On 7/14/26, Father filed an Income and Expense Declaration.
- 6) On 7/23/26, Mother filed a Reply Declaration reiterating her position.

1 **B. Findings and Order**

- 2 1) Per Family Code section 3653, orders granting modification of child support may be made
3 retroactive to the date of the filing of the notice of motion or to any subsequent date.
- 4 2) As such, the Court finds good cause to GRANT Mother's request for modification of child
5 support retroactive to 6/15/26 as the parties' employment statuses and the parenting time changed
6 since the 11/13/20 child support order was issued, both of which qualify as a change in
7 circumstances warranting modification of support. See *Marriage of Bardzik* (2008) 165 CA4th
8 1291, 1303-1304.
- 9 3) Effective 6/15/26, Father shall pay Mother \$1,061 in guideline monthly child support by the 1st of
10 every month. Monthly payments shall commence on 8/1/26.
- 11 4) This means that Father owes Mother \$18 in guideline child support arrears. Father shall pay this
12 balance in full by 8/15/26.
- 13 5) Moving forward, the parties shall share the following add-on expenses with Father responsible for
14 81% and Mother 19% of costs: childcare costs related to employment or to reasonably necessary
15 education or training for employment skills, reasonable uninsured healthcare costs for the child,
16 and the reasonable costs associated with mutually agreed upon extracurricular activities (neither
17 party shall unreasonably withhold consent for a child to participate in an activity). The procedure
18 to make or pay a reimbursement claim for these child support add-ons shall be as set forth in
19 Judicial Council Form FL-192.
- 20 6) By law, health insurance coverage for a supported child shall be maintained by either or both
21 parents if that insurance is available at no cost or at a reasonable cost to the parent. See Family
22 Code section 3751.
- 23 7) As such, Mother's request that Father maintain the minor child on the health insurance plan under
24 which the minor child was previously covered is GRANTED.
- 25 8) The Court will prepare the Findings and Order After Hearing.
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2026**Fixed Shares**

	Father	Mother
Number of children	0	1
Percent time with NCP	49.00%	0.00%
Filing status	SINGLE HH/MLA	
Number of exemptions	1	2
Wages and salary	7704	0
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	384	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	255	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	5586
Mother	0
Total	5586
Addons	0
Guideln CS	1061
S.Clara SS	0
Total	1061

Support**Settings changed****Proposed****Tactic 9**

CS	1104
SS	0
Total	1104
Saving	224
Releases	1

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	5586	5810
Percent change	0%	4%
Father		
Payment cost/benefit	-1061	-880
Net spendable income	4525	4706
Change from guideline	0	182
% of combined spendable	81%	81%
% of saving over guideline	0%	81%
Total taxes	1863	1639
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	5485	5485
Mother		
Payment cost/benefit	1061	1104
Net spendable income	1061	1104
Change from guideline	0	43
% of combined spendable	19%	19%
% of saving over guideline	0%	19%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Proposed CS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		49 - 51	0	0	0 Father	1,061 Father	1,061 Father
	0000-00-00	49 - 51	0	0	0 Father	1,061 Father	1,061 Father